ORDINANCE NO. 525

THE ABANDONMENT OF A PORTION OF MARY STREET AND VELTA STREET

The South Half of Mary Street and the East Half of Velta Street as shown on record plat of Marlar's Addition to the City of Rector, Arkansas, lying adjacent to Lots 6 & 7, and the West 12.5 feet of Lots 5 & 8, Block 1 of Marlar's Addition to the City of Rector, Arkansas, described as follows: Beginning at the Southwest corner of said Lot 7, run thence North 0 degrees 18' W 211.0 feet, run thence North 89 degrees 42' E 75.0 feet, run thence North 0 degrees 18' W 20.0 feet, run thence South 89 degrees 42' W 93.0 feet, run thence South 0 degrees 18' E 231.0 feet, run thence North 89 degrees 42' E 18.0 feet to the true point of beginning.

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS, TO-WIT:

WHEREFORE, a petition was duly filed with the City Council of the City of Rector, Arkansas, on the 22nd day of August, 2007, asking the City Council to vacate and abandon all that portion of an street designated as Mary Street and Velta Street, described as The South Half of Mary Street and the East Half of Velta Street as shown on record plat of Marlar's Addition to the City of Rector, Arkansas, lying adjacent to Lots 6 & 7, and the West 12.5 feet of Lots 5 & 8, Block 1 of Marlar's Addition to the City of Rector, Arkansas, described as follows: Beginning at the Southwest corner of said Lot 7, run thence North 0 degrees 18' W 211.0 feet, run thence North 89 degrees 42' E 75.0 feet, run thence North 0 degrees 18' W 20.0 feet, run thence South 89 degrees 42' W 93.0 feet, run thence South 0 degrees 18' E 231.0 feet, run thence North 89 degrees 42' E 18.0 feet to the true point of beginning.

WHEREAS, after due notice as required by law, the City Council has, at the time and place mentioned in the notice, heard all persons desiring to be heard on the question and has ascertained that the streets or the portion thereof, hereinbefore described, have heretofore been dedicated to the public use as street herein described; that said streets have not been actually used by the public generally for a period of at least five years subsequent to the filing of the plat; that the owner of the property abutting upon the portion of the streets to be vacated has filed with the Council his written Petition to such abandonment; and

the public interest and welfare will not be adversely affected by the abandonment of a portion of such streets.

NOW THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS, TO-WIT:

SECTION 1. The City of Rector, Arkansas, hereby releases, vacates and abandons all its rights, together with the rights of the public generally, in and to a portion of streets designated as follows:

> The South Half of Mary Street and the East Half of Velta Street as shown on record plat of Marlar's Addition to the City of Rector, Arkansas, lying adjacent to Lots 6 & 7, and the West 12.5 feet of Lots 5 & 8, Block 1 of Marlar's Addition to the City of Rector, Arkansas, described as follows: Beginning at the Southwest corner of said Lot 7, run thence North 0 degrees 18' W 211.0 feet, run thence North 89 degrees 42' E 75.0 feet, run thence North 0 degrees 18' W 20.0 feet, run thence South 89 degrees 42' W 93.0 feet, run thence South 0 degrees 18' E 231.0 feet, run thence North 89 degrees 42' E 18.0 feet to the true point of beginning.

SECTION 2. A copy of the ordinance duly certified by the City Recorder shall be filed in the Office of the Circuit Clerk and Ex-Officio Recorder of the county and recorder in the deed records for the Eastern District of Clay County.

SECTION 3. This ordinance shall take effect and be in force from and after its passage.

Passed and approved by the City Council of the City of Rector, this 6th day of September, 2007.

Ron Kemp, Mayor

Attest:

City Clerk

CITY TREASURER
403 SO. STEWART
RECTOR, AR 72461

NOTICE OF HEARING

Notice is hereby given that there has been filed in the Office of the City Recorder, Rector, Arkansas, a petition purporting to be signed by a portion of the abutting land owners by and through their attorney, C. Joseph Calvin, to vacate certain streets within the City of Rector, Arkansas.

The petitioners states that they are a portion of sole abutting land owners on one side of a portion of Mary Street and Velta Street, and said streets have not been used for a period of five years from the date of this notice.

> The South Half of Mary Street and the East Half of Velta Street as shown on record plat of Marlar's Addition to the City of Rector, Arkansas, lying adjacent to Lots 6 & 7, and the West 12.5 feet of Lots 5 & 8, Block 1 of Marlar's Addition to the City of Rector, Arkansas, described as follows: Beginning at the Southwest corner of said Lot 7, run thence North 0 degrees 18' W 211.0 feet, run thence North 89 degrees 42' E 75.0 feet, run thence North 0 degrees 18' W 20.0 feet, run thence South 89 degrees 42' W 93.0 feet, run thence South 0 degrees 18' E 231.0 feet, run thence North 89 degrees 42' E 18.0 feet to the true point of beginning.

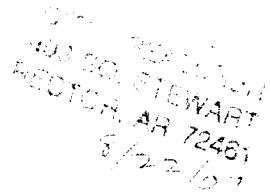
Petitioners: Unico Bank and Russ Brewer

The City Council of the City of Rector has set the 10th day of September, 2007, the regular scheduled City Council Meeting, for a hearing on the above styled matter.

Dated: 8/22/07

Jewell D. McKinney
City Recorder

IN THE MATTER OF THE VACATING A PORTION OF CERTAIN STREETS IN THE CITY OF RECTOR, ARKANSAS LOCATED IN THE MARLAR'S ADDITION



Comes now the petitioners, Unico Bank, and the land owner, Russ Brewer, a potential buyer, by and through their attorney, C. Joseph Calvin, and for their relief requests that the City of Rector vacate certain streets within the city limits. The petitioners state that they are the sole abutting landowner on one side of a portion of Mary Street and Velta Street, and that said streets have not been used for a period of five years from the date of this petition.

> The South Half of Mary Street and the East Half of Velta Street as shown on record plat of Marlar's Addition to the City of Rector, Arkansas, lying adjacent to Lots 6 & 7, and the West 12.5 feet of Lots 5 & 8, Block 1 of Marlar's Addition to the City of Rector, Arkansas, described as follows: Beginning at the Southwest corner of said Lot 7, run thence North 0 degrees 18' W 211.0 feet, run thence North 89 degrees 42' E 75.0 feet, run thence North 0 degrees 18' W 20.0 feet, run thence South 89 degrees 42' W 93.0 feet, run thence South 0 degrees 18' E 231.0 feet, run thence North 89 degrees 42' E 18.0 feet to the true point of beginning.

WHEREFORE, petitioners pray that they be granted an ordinance vacating the above described streets and further that the ordinance be filed with the clerk of said county and that ownership of said streets shall revert to the abutting land owner to the center of said streets, if applicable. That the owners who own land adjacent to the streets in question have agreed to the vacating.

DATED: 8/21/07

C. JOSEPH CALVIN
Attorney at Law
P.O. Box 196
201 East Ninth Street
Rector, Arkansas 72461
Phone (870) 595-3504

Attorney for the Petitioners

ENTRY OF APPEARANCE AND
WAIVER OF NOTICE

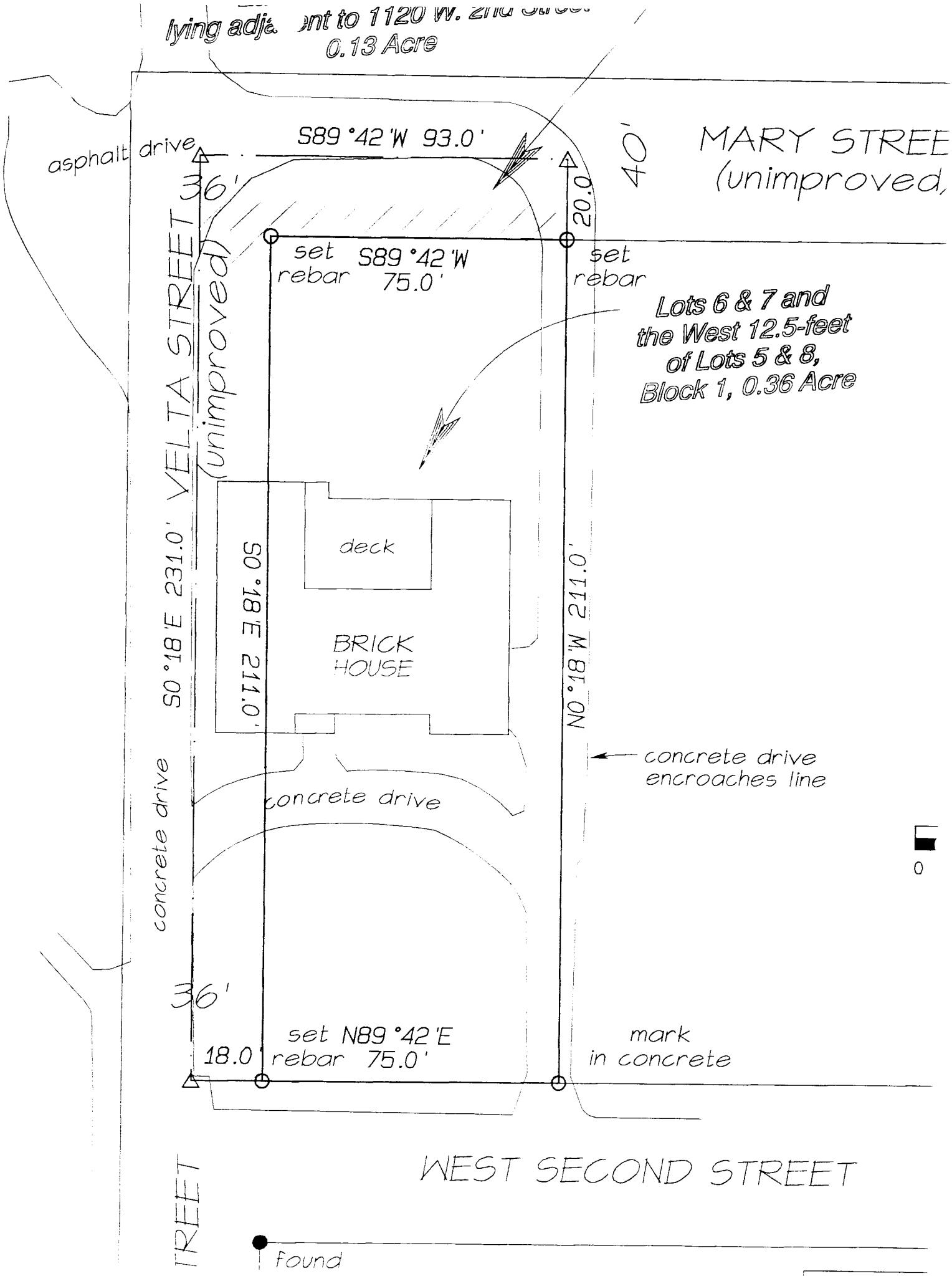
Comes now, Bill Russell, states that he is one of the land owners on one side of a portion of Mary Street and Velta Street. Further, states that he is the agent for Tim Morris and Paulette Morris, his wife and George Holitik and Connie Holitik, his wife. That all the land owners are hereby in agreement that the City of Rector, Arkansas, to vacate the following described portion of streets, without any further notice to the above listed land owners, to-wit:

The South Half of Mary Street and the East Half of Velta Street as shown on record plat of Marlar's Addition to the City of Rector, Arkansas, lying adjacent to Lots 6 & 7, and the West 12.5 feet of Lots 5 & 8, Block 1 of Marlar's Addition to the City of Rector, Arkansas, described as follows: Beginning at the Southwest corner of said Lot 7, run thence North 0 degrees 18' W 211.0 feet, run thence North 89 degrees 42' E 75.0 feet, run thence North 0 degrees 18' W 20.0 feet, run thence South 89 degrees 42' W 93.0 feet, run thence South 0 degrees 18' E 231.0 feet, run thence North 89 degrees 42' E 18.0 feet to the true point of beginning.

Bill Russell

CITY OF RECTOR
CITY TREASURER
403 SO. STEWART
RECTOR, AR 72461

9/10/07


lying adja nt to 1120 W. 2nd Street
0.13 Acre
asphalt drive
S89 °42 'W 93.0'
40'
MARY STREE
(unimproved,
36'
VELTA STREET
(unimproved)
20.0'
set rebar
S89 °42 'W 75.0'
set rebar
Lots 6 & 7 and the West 12.5-feet of Lots 5 & 8, Block 1, 0.36 Acre
S0 °18 'E 231.0'
S0 °18 'E 211.0'
deck
BRICK HOUSE
N0 °18 'W 211.0'
concrete drive encroaches line
concrete drive
concrete drive
0
36'
18.0'
set N89 °42 'E rebar 75.0'
mark in concrete
WEST SECOND STREET
TREET
found